

In India's parliamentary system, executive power is divided between the Union and State governments. The Prime Minister and Chief Minister, along with their respective Councils of Ministers, hold real executive authority, shaping national and state policies.

THE PRIME MINISTER AND CHIEF MINISTER

Articles Related to the Prime Minister of India	Articles Related to the Chief Minister
• 74: Council of Ministers advises the President. • 75: Provisions for Minister appointment and conduct. • 77: Business conduct of the Government of India. • 78: PM's duties for providing information to the President. • 88: Rights of Ministers concerning the Houses.	• 163: Council of Ministers aids and advises the Governor. • 164: Provisions for Minister appointment by the Governor. • 167: CM's duties to inform the Governor about Council decisions. • 169: Power to legislate for the composition of the Legislative Council.

CONSTITUTIONAL PROVISIONS OF PM AND CM

Parameters	Prime Minister (PM)	Chief Minister (CM)
Appointment & Oath	Article 75: The Prime Minister shall be appointed by the President. • Appointment of PM/CM: No specific procedure in the Constitution. By convention, the leader of the majority party is appointed PM/CM. • Discretion in Case of No Majority: If no clear majority, the President/Governor may use personal discretion to appoint PM/CM. The PM/CM must secure a vote of confidence within a month. • Death of PM/CM: In case of sudden death and no successor, the President/Governor uses individual judgement to appoint a successor. • Eligibility: PM/CM can be from either House of Parliament/State Legislature. Non-members can be appointed but must be elected within six months. • Oath Administration: President/Governor administers oaths of office and secrecy.	Article 164: The Chief Minister shall be appointed by the Governor.
Term	Not fixed, holds office during the pleasure of the President .	Not fixed, holds office during the pleasure of the Governor .
Salary	Determined by Parliament .	Determined by the State legislature .

Powers and Functions	PM/CM Role in COM • Recommends ministerial appointments. • Allocates/reshuffles portfolios. • Can ask a minister to resign or advise dismissal. • Presides over COM meetings and influences decisions. • Resignation of PM/CM can collapse the COM. Impact of PM/CM Resignation or Death: Resignation or death of PM/CM dissolves COM.	
Additional Powers	With Parliament: • Advises President on summoning/proroguing sessions. • Can recommend dissolution of Lok Sabha. • Announces government policies in the House. Other Roles of PM: • Chairman of NITI Aayog, NITI Aayog, National Integration Council, Inter-State Council, National Water Resources Council, and other councils. • Shapes foreign policy, chief government spokesperson, crisis manager, and leader of the ruling party.	With State Legislature: • Advises Governor on summoning/proroguing the sessions and dissolution of the assembly. • Announces policies on the House floor. Other Roles: • Chairman of the State Planning Board. • Vice-chairman of Zonal Council (rotational), member of Inter-State Council and NITI Aayog. • Spokesperson, crisis manager, and political head of state services.
Relations with Nominal Head	PM with the President: Article 74: PM heads the Council of Ministers (CoM) to aid and advise the President. The President may ask for reconsideration but must follow final advice. Article 75: • PM appointed by the President; other ministers appointed on PM's advice. • Ministers hold office at the pleasure of the President. • CoM is collectively responsible to the Lok Sabha. Article 78: PM's duties include: • Communicating CoM decisions and legislative proposals to the President. • Submitting matters for CoM consideration upon the President's request. Others: Advises President on appointments of key officials (Attorney General, CAG, UPSC, Election Commissioners, etc.).	CM with the Governor: Article 163: CM heads the CoM to aid the Governor , who may act at discretion in some cases. Article 164: • CM appointed by the Governor; other ministers on CM's advice. • Ministers hold office at the pleasure of the Governor. • CoM is collectively responsible to the legislative assembly. Article 167: CM's duties include: • Communicating CoM decisions and legislative proposals to the Governor. • Submitting matters for CoM reconsideration upon Governor's request.

THE PRIME MINISTER'S OFFICE (PMO)

- The PMO supports the PM in managing the Government of India and executing constitutional, executive, and administrative responsibilities.
- Tasked with coordinating operations of various departments and ministries, offering counsel on policy and administrative matters.
- Led by the **Principal Secretary**, with senior officials assisting the PM.
- **Departments Under PMO:** Department of Atomic Energy (DAE), Department of Space (DoS), National Security Council (NSC)

PRIME MINISTER'S FUNDS

- **Prime Minister's National Relief Fund (PMNRF):** Established in 1948 by Jawaharlal Nehru for displaced people, now focuses on aiding families affected by natural disasters and reimbursing medical expenses. Donations are **100% tax-deductible** under section 80G of the Income Tax Act, 1961.
- **National Defence Fund:** Established in 1962 post-Sino-Indian War, chaired by the PM, reliant on **public voluntary contributions**. Contributions are **100% tax-deductible** under section 80G of the Income Tax Act, 1961.
- **PM Cares Fund:** Created in March 2020 by PM Narendra Modi in response to the COVID-19 pandemic, addressing various emergency situations.

Role of Prime Minister by Scholars	Facts About Indian Prime Ministers
• Sir William Vernor Harcourt: PM as a moon among lesser stars. • Ivor Jennings: PM is the sun around which planets revolve. • Lord Morley: PM is primus inter pares and the keystone of the cabinet arch. • Herbert Morrison: PM is primus inter pares, with a stronger role. • R.H. Crossman: Cabinet government turned into Prime Ministerial government. • Humphrey Berkely: PM holds super-ministerial powers, risking democracy. • Dr. B.R. Ambedkar: PM's role surpasses the President, akin to U.S. President.	• Longest-serving: Jawaharlal Nehru (1947 – 1964). • Second longest-serving: Indira Gandhi. • First non-Congress PM: Morarji Desai. • First Indian PM awarded Pakistan's highest civilian award: Morarji Desai. • Youngest Indian PM: Rajiv Gandhi. • First PM from South India: P.V. Narasimha Rao. • First PM who was a member of the Rajya Sabha: Indira Gandhi. • Twice Acting Prime Minister: Gulzari Lal Nanda.

Note: The Prime Minister of India, at the time of his/her appointment **need not necessarily** be a member of one of the Houses of the Parliament but must become a member of one of the Houses **within six months**. [UPSC 2012]

Chief Ministers who Later became Prime Ministers

Chief Minister	State	Became Prime Minister
Morarji Desai	Bombay (1952–56)	March 1977 (First non-Congress PM)
Charan Singh	Uttar Pradesh (1967–68, 1970)	July 1979
V.P. Singh	Uttar Pradesh	December 1989 (National Front government)
P.V. Narasimha Rao	Andhra Pradesh (1971–73)	June 1991
H.D. Deve Gowda	Karnataka	June 1996 (United Front government)
Narendra Modi (BJP)	Gujarat (2001–2014)	May 2014

UNION AND STATE COUNCIL OF MINISTER

- **Historical Context:** The **portfolio system** was initiated by **Lord Canning** in the **Indian Councils Act of 1861**. In the **United Kingdom**, the Council of Ministers is a convention-based executive, while in **India**, it is codified in the Constitution.

Constitutional Provisions:

- **Article 74:** it is not known abbreviation aids and advises the **President**. The President can request reconsideration, but binding advice follows.
- **Article 163:** State CoM aids and advises the **Governor**. The Governor's discretion is final in ambiguous matters.
- **91st CAA, 2003:** Total no. of ministers, including PM/CM should **not be more than 15% of total strength of Lok Sabha/State Legislative Assembly**. [UPSC 2022] The number of ministers in the state legislature, including the CM, in a state **shall not be less than 12**.
- A member who is disqualified on the ground of defection **shall also be disqualified to be appointed as a minister**.
- **Article 88:** Every Minister has the **right to speak and take part in proceedings of both the houses** but can **only vote where he is a member**.
- **Article 177:** A minister who is a member of one House of the state legislature has the **right to speak and to take part in the proceedings of the other House**. But he can **vote only in the House of which he is a member**.
- Person, not a member of any house of parliament can become **minister maximum for a duration of six months**.

[UPSC 2020]



Criteria	Union Council of Ministers (UCoM)	State Council of Ministers (SCoM)
Definition	The executive body at the national level, advising the President of India.	The executive body at the state level, advising the Governor.
Constitutional Basis	Articles 74 and 75 of the Indian Constitution	Articles 163 and 164 of the Indian Constitution
Head	Prime Minister (PM)	Chief Minister (CM)
Appointment	PM appointed by the President; other ministers on PM's advice	CM appointed by the Governor; other ministers on CM's advice
Oath of Office	Administered by the President	Administered by the Governor of the State
Salary	Determined by Parliament	Determined by the State Legislature
Tenure	Ministers hold office during the President's pleasure. [UPSC 2013]	Ministers hold office during the Governor's pleasure
Collective Responsibility	Responsible to the Lok Sabha	Responsible to the State Legislative Assembly
Size	Typically 60 to 70 ministers not more than 15% of total strength	Minimum of 12 ministers required not more than 15% of total strength
Composition	Includes Cabinet Ministers, Ministers of State, and Deputy Ministers. [UPSC 2022]	Includes Cabinet Ministers and Ministers of State
Discretion	President acts on CoM's advice	Governor can exercise discretion on certain matters
Judicial Review	Advice tendered is not subject to court inquiry	Advice tendered is not subject to court inquiry
Rights of Ministers	Can speak in both Houses, vote only in their House	Similar rights as UCoM regarding legislative participation
Meeting Frequency	Does not meet as a body for business	May convene for legislative business

COLLECTIVE VS. INDIVIDUAL RESPONSIBILITY

- Both councils operate on **collective responsibility**, meaning they work as a team and resign upon a no-confidence motion. **[UPSC 2018]**
- Individual responsibility** allows the President or Governor to remove ministers on the advice of the PM or CM, even amidst legislative confidence.

Note: Unlike the UK, Indian ministers lack a provision for legal responsibility.

CABINET AND KITCHEN CABINET

- The **cabinet**, a smaller body defined in the **44th CAA, 1978**, consists of **15-20 ministers** and meets frequently for decision-making. **[UPSC 2013]**
- The **kitchen cabinet** is an informal group of the PM and trusted colleagues, serving as the inner circle for key discussions. Phenomenon of 'kitchen cabinets' is **not unique to India**; it also exists in the **USA and Britain**.

